

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

Defendants.

C.A. No.: 2:25-CV-00405-RMG-MGB

1. **Smear Plaintiff,**
2. **Shift the focus away from evidence that harms them, and**

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3. **Avoid addressing the video evidence filed with the Court**, which their own filings show they are desperately trying to avoid obtaining.

Defendants falsely claim that Plaintiff “put her entire mental health at issue” when she has asserted **only garden-variety emotional distress**, which does **not** waive psychotherapist-patient privilege under *Jaffee v. Redmond*, 518 U.S. 1 (1996).

Defendants demand **all medical records, all psychotherapy files, and even tax returns**, despite already being given the necessary wage information and offered a summary letter from Plaintiff’s therapist.

This is not discovery.

This is harassment.

II. FACTUAL BACKGROUND

A. Plaintiff Already Produced the Evidence Defendants Claim She Is “Hiding” — They Simply Don’t Want It

Plaintiff submitted a flash drive to the Clerk of Court containing the 30-minute cyber intrusion video that her former attorney informed Defendants about. Defendants admit they contacted the Court and were told they could not copy or remove the drive — yet they intentionally misrepresent to this Court that Plaintiff “refused access.”

Defense counsel knowingly filed false statements regarding Plaintiff’s cooperation.

Their filings demonstrate deliberate distortion of Plaintiff’s correspondence and Court procedures.

B. Defendants’ Subpoenas Seek Every Personal Medical Detail From 2022–Present

Despite Plaintiff offering:

- a summary letter from her therapist,
- deposition testimony,
- wage information, and
- full damages details,

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Defendants demand:

- psychotherapy notes,
- full medical files,
- treatment history,
- diagnoses,
- unrelated doctors' notes,
- Amentum employment/termination files,
- and tax returns.

This is a fishing expedition — and a malicious one.

C. Defendants' Subpoenas Do Not Match Their Claimed Purpose

Defendants told the Court the subpoenas were “to evaluate employment records.”

But the subpoenas include:

- termination documents,
- performance evaluations,
- disciplinary records,
- internal Amentum communications,
- insurance information,
- and entire medical histories.

In other words:

They are not evaluating anything — they are hunting for ammunition.

III. ARGUMENT

A. Plaintiff Has Not Waived Psychotherapist Privilege — Defendants' Argument Is A Bad-Faith Misrepresentation of the Law

Under *Jaffee v. Redmond*, 518 U.S. 1 (1996), psychotherapy records are **privileged and absolutely protected**.

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Waiver requires:

- calling the therapist as a witness,
- relying on diagnoses,
- placing clinical treatment at issue,
- or producing therapy notes.

Plaintiff did NONE of these.

Plaintiff asserted:

- **garden-variety emotional distress,**
- **no diagnosis,**
- **no medical condition,**
- **no specialized mental-health damages,**
- **no expert testimony.**

A summary therapist letter is **exactly what courts allow.**

Defense counsel knows this.

They are trying to trick the Court.

B. Defendants' Subpoenas Are Unlawfully Overbroad, Intrusive, and Retaliatory

The subpoenas violate:

- Federal Rule of Civil Procedure 26(b)(1) (proportionality),
- Rule 26(c) (privacy protection),
- Rule 45(d)(3)(A) (must quash intrusive subpoenas), and
- established Fourth Circuit precedent limiting discovery of private medical records.

These subpoenas seek EVERYTHING about Plaintiff's body, brain, medical history, and unrelated health conditions.

Courts have repeatedly rejected this kind of "scorched-earth discovery."

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C. Defendants Cannot Demand Private Medical Records When Less Intrusive Alternatives Exist

Plaintiff already:

- testified regarding her stress,
- disclosed her damages,
- provided wage information,
- offered a summary letter from her therapist.

Defendants have *multiple* less intrusive sources for any relevant information.

This alone requires quashing the subpoenas.

D. The Subpoenas to Amentum are a Retaliatory Attempt to Use Plaintiff's New Employment Against Her

Defense counsel:

- asked Plaintiff if she intended to return to Amentum
- the **next day**, Plaintiff was terminated
- now they seek Plaintiff's termination files and internal Amentum records

This reeks of retaliation and coordinated interference.

The Court should not reward such conduct.

E. Defense Counsel's Misrepresentations to the Court Warrant Sanctions

Defense counsel:

- misrepresented Plaintiff's email communications,
- misrepresented the flash drive situation,
- misrepresented notice of subpoenas,

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- misrepresented waiver of privilege,
- misrepresented the purpose of subpoenas,
- and misrepresented what Plaintiff has already produced.

This is sanctionable under:

- Rule 11,
- Rule 26(g),
- Rule 37(a)(5), and
- this Court's inherent authority.

IV. REQUESTED RELIEF

Plaintiff respectfully requests the Court enter an Order:

- 1. Quashing Defendants' subpoenas to Plaintiff's therapist and all medical providers.**
- 2. Prohibiting Defendants from seeking ANY medical or psychotherapy records other than the summary therapist letter already offered.**
- 3. Prohibiting Defendants from seeking Plaintiff's tax returns.**
- 4. Limiting discovery to wages, dates of employment, and non-medical information regarding mitigation.**
- 5. Ordering Defendants to withdraw all overbroad discovery requests.**
- 6. Imposing monetary sanctions on defense counsel for bad-faith conduct.**
- 7. Issuing any further relief necessary to protect Plaintiff's privacy and prevent ongoing harassment through discovery.**

V. CONCLUSION

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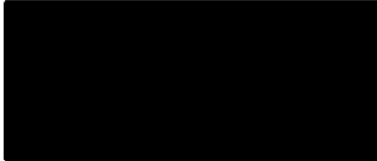
Defendants have turned discovery into a weapon — not a search for relevant information. Their subpoenas seek to harass, intimidate, and smear Plaintiff, and their misrepresentations to this Court cannot be ignored.

The Court should immediately:

- quash the subpoenas,
- enter a protective order,
- deny any request for medical or psychotherapy records, and
- impose sanctions for Defendants' abusive tactics.

Respectfully submitted 14th of November, 2025,


Debra Nelson
Plaintiff, Pro Se



CERTIFICATE OF SERVICE

I hereby certify that on this 14th day of November, 2025, I served a true and correct copy of the foregoing **Plaintiff's Motion for Protective Order, Motion to Quash Defendants' Subpoenas for Medical Records, and Motion for Sanctions for Bad-Faith Discovery Abuse** by email addressed to:

T. Chase Samples, Esq.
chase.samples@jacksonlewis.com
Joseph V. Valenza, Esq.
joseph.valenza@jacksonlewis.com
Jackson Lewis P.C.
15 South Main Street, Suite 700
Greenville, SC 29601

Debra Nelson
Pro Se Plaintiff

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

Defendants.

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1. Plaintiff has asserted *garden-variety emotional distress* and has not placed her medical or psychotherapeutic condition at issue within the meaning of *Jaffee v. Redmond*, 518 U.S. 1 (1996). Plaintiff has not waived the psychotherapist-patient privilege.

2. Defendants' subpoenas seeking Plaintiff's complete medical and psychotherapy records, as well as unrelated private health information, are overbroad, unduly intrusive, disproportionate, and not relevant to the claims or defenses in this action.

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3. Defendants have access to less intrusive sources of any relevant information, including Plaintiff's deposition testimony, wage disclosures, and the summary letter offered from Plaintiff's therapist.

4. The Court finds good cause under Fed. R. Civ. P. 26(c) to protect Plaintiff from invasion of privacy, harassment, and improper discovery tactics.

5. The Court further finds that Defendants' conduct with respect to the disputed subpoenas and discovery representations warrants corrective action by the Court.

IT IS THEREFORE ORDERED THAT:

1. Defendants' subpoenas to Plaintiff's therapist and any other medical providers are QUASHED in their entirety.

2. Defendants are PROHIBITED from seeking Plaintiff's medical, psychotherapy, or mental-health records beyond the summary letter offered by Plaintiff.

3. Defendants are PROHIBITED from seeking Plaintiff's tax returns or other financial records not directly tied to mitigation of damages.

4. Defendants shall withdraw any remaining discovery requests seeking private medical, psychotherapeutic, or unrelated personal information.

5. A Protective Order is hereby entered pursuant to Rule 26(c) barring Defendants from issuing further medical or mental-health subpoenas without express leave of Court.

6. Plaintiff's request for sanctions is GRANTED IN PART.

Defendants are hereby admonished and warned that further misrepresentations or abusive discovery practices will result in monetary sanctions and/or other appropriate relief.

7. The Court retains jurisdiction to enforce or modify this Order as necessary.

IT IS SO ORDERED.

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The Honorable Mary Gordon Baker

United States Magistrate Judge

Charleston, South Carolina

Date: _____

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Plaintiff has no control over the Clerk's retention, copying, or release policies.

3. Defendants Failed to Use the Proper Procedure to Inspect the Exhibit

If Defendants genuinely needed access to the flash-drive evidence, they had (and still have) a straightforward remedy:

File a Motion to Inspect Physical Evidence or a Motion to Access Physical Exhibit.

Defendants did not do so.

Instead, they elected to accuse Plaintiff of "refusing" to provide materials that the Clerk prevented them from obtaining.

Plaintiff has **never** denied access.

Defense counsel simply refused to follow the proper procedure.

4. Plaintiff Has Fully Satisfied Her Discovery Obligations Regarding the Flash Drive

Plaintiff:

- Filed the flash drive with the Court
- Notified defense counsel of its location
- Provided written notice of its filing
- Provided the ECF number
- Maintained the evidence exactly as instructed by her former counsel

Rule 34 does **not** require Plaintiff to produce duplicate copies of materials already filed with the Court and held in the Clerk's custody.

5. Defense Counsel's Assertions That Plaintiff "Refused Access" Are Misleading and False

Defendants' filings repeatedly suggest that Plaintiff:

- withheld the video
- denied access
- prevented copying
- ignored obligations

Those statements are **factually incorrect** and contradicted by:

- the ECF record,
- Plaintiff's emails, and
- the Clerk's communication with defense counsel.

The only barrier to their obtaining the video is their **failure to file the correct motion**.

6. Plaintiff Reserves All Rights

Plaintiff reserves all rights to seek sanctions or other relief due to defense counsel's mischaracterizations regarding this issue.

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Respectfully submitted 14th of November, 2025,



Debra Nelson

Plaintiff, Pro Se



CERTIFICATE OF SERVICE

I hereby certify that on this 14th day of November, 2025, I served a true and correct copy of the foregoing **Plaintiff's Notice Regarding Access to Flash Drive Exhibit and Correction of Defense Counsel's Misstatements** by email addressed to:

T. Chase Samples, Esq.

chase.samples@jacksonlewis.com

Joseph V. Valenza, Esq.

joseph.valenza@jacksonlewis.com

Jackson Lewis P.C.

15 South Main Street, Suite 700

Greenville, SC 29601

Debra Nelson

Pro Se Plaintiff